

26LBCP00016 26LBCP00016

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-11

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS27%2C08%2F11%2F2026

Source SHA-256: 16bd59810e3524944e246a8f0200ab076239313e85aa7350c09a08044721777b

Case Number: 26LBCP00016 Hearing Date: August 11, 2026 Dept: S27

BACKGROUND

Plaintiff

Travelle Malone (Petitioner) petitions for relief from the deadline to submit a government claim arising from an incident where he was allegedly struck by a vehicle driven by one of respondent City of Irvine's (Respondent's) employees in the course of the employee's work.

Petitioner

filed his petition on January 15, 2026, accompanied by his declaration and various exhibits. Respondent filed its opposition on April 13, 2026.

On July 14, 2026, Petitioner filed an Errata to his petition, supplementing his declaration and exhibits. The Court considers the errata, as it was filed and served more than 16 court days before the instant hearing and Respondent lodged no objection.

The undisputed timeline of relevant events is as follows:

January
10, 2025

Accident occurs.

(Malone Decl., ¶ 2.) Petitioner is unaware that the driver who struck him is employed by Respondent. (Labib Decl., ¶ 5.)

May
28, 2025

Petitioner
retains counsel. (Labib Decl., ¶ 2.)

June
2, 2025

Petitioner's
counsel submits a request to law enforcement for the Traffic Collision Report
(TCR) prepared in connection with the accident. (Id., ¶ 3.)

June
10, 2025

Petitioner's
deadline to submit his government claim expires.

July
25, 2026

Petitioner's
counsel receives the TCR from law enforcement, which identifies the driver of
the vehicle as Respondent's employee for the first time. (Id., ¶ 4 and
Exh. C.)

July
28, 2025

Petitioner's
counsel submits a government claim. (Id., ¶ 6 and Exh. D.)

August
1, 2025

A County
government office affiliated with Respondent (the County of Orange – County
Executive Office of Risk) rejects Petitioner's late-filed claim. (Id.,
¶ 7.)

October
31, 2025

Petitioner's
counsel applies to Respondent to submit a late government claim.

December
15, 2025

Petitioner's
application to submit a late claim is denied by operation of law for
Respondent's failure to respond to the request. (Malone Decl., ¶ 5.)

On
January 15, 2026, Petitioner filed his instant petition for relief under
Government Code section 916.6.

DISCUSSION

Applicable
Law

Before a suit for damages may be filed against a public
entity, a claimant must present a timely written claim to the public
entity, and the claim must have been acted upon by the board
or deemed rejected. (Gov. Code § 945.4; *Munoz v. State of
California*, (1995) 33 Cal.App.4th 1767, 1777.) A claim relating to a cause
of action for injury to person or personal property must be presented
to the public entity no later than six months after the accrual of the cause of
action. (Gov. Code § 911.2; *Munoz*, supra, 33
Cal.App.4th, at p. 1776.)

If a claimant fails to present a claim within
the statutory period, the claimant may apply "within a reasonable time not to
exceed one year after the accrual of the cause of action" to the public entity
for leave to present a late claim. (Gov. Code § 911.4, subd. (b).) If the
public entity denies leave to present a late claim, a claimant may petition the
Court under Government Code § 946.6 for relief from the requirements of
Government Code § 945.4. (*Munoz*, supra, 33

Cal.App.4th at p. 1777.)

A petition pursuant to Government Code § 946.6 must be “filed within six months after the application to the board is denied or deemed to be denied pursuant to Section 911.6.” (Gov. Code § 946.6, subd. (b); see also *City of Los Angeles v. Superior Court* (1993) 14 Cal.App.4th 621, 627.) This requirement is mandatory and operates as a statute of limitations. (*Lineaweaver v. S. Cal. Rapid Transit Dist.* (1983) 139 Cal.App.3d 738, 741; see also *J.M. v. Huntington Beach Union High School Dist.* (2017) 2 Cal.5th 648, 653.)

Analysis

Petitioner

has demonstrated excusable neglect for purposes of section 915.6.

“The

showing required of a party seeking relief under section 946.6 is the same as that required under section 473 of the Code of Civil Procedure,

which provides for relief from default. [Citation.]” (*Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 275, fn. 5; see also *Renteria v. Juvenile Justice, Department of Corrections & Rehabilitation* (2006) 135 Cal.App.4th 903, 911 [citing same].) “Section 946.6 is a remedial statute intended to provide relief from technical rules which otherwise provide a trap for the unwary claimant. [Citation.] The remedial policies underlying the statute are ‘that wherever possible cases be heard on their merits and any doubts which may exist should be resolved in favor of the application.’ [Citation.]” (*Ebersol v. Cowan* (1983) 35 Cal.3d 427, 435, citing *Viles v. State* (1967) 66 Cal.2d 24, 29-31.)

That

said, “[t]o obtain relief under section 946.6, subdivision (c)(1), ‘[t]he mere recital of mistake, inadvertence, surprise or excusable neglect is not sufficient to warrant relief. Relief on grounds of mistake, inadvertence, surprise or excusable neglect is available only on a showing that the claimant’s failure to timely present a claim was reasonable when tested by the objective “reasonably prudent person” standard.’ ... Under the reasonably prudent person standard, ‘[e]xcusable neglect is that neglect which might have been the act of a reasonably prudent person under the circumstances.’ ... When relief is sought based on mistake, because of the reasonably prudent person

standard 'it is not every mistake that will excuse a default, the determining factor being the reasonableness of the misconception.'" (N.G. v. County of San Diego (2020) 59 Cal.App.5th 63, 74, internal citations and footnotes omitted, italics in original.)

Petitioner

acted as a reasonably prudent person might in this case.

Respondent

relies on Department of Water & Power v. Superior Court (2000) 82 Cal.App.4th 1288 (DWP) to argue Petitioner was not reasonably diligent in investigating the circumstances of the accident and discovering Respondent's involvement.

DWP is

distinguishable. In DWP, work by the public entity respondent contributed to a dangerous condition on the road at the site of the petitioner's accident. (Id., at pp. 1291-1292.) The public entity's involvement was apparent from the moment of the accident. The petitioner retained counsel long before submitting his claim and even filed a lawsuit against the driver of the other vehicle, yet failed explore the entity's liability until after the claims deadline had passed. (Id., at p. 1292.) Here, there were no such clear indications a public entity was involved, Petitioner was not represented by counsel until shortly before Respondent's involvement was discovered, and a claim was promptly submitted afterward.

Where

a plaintiff has no reason to believe a public entity is involved with an underlying incident, it is reasonably prudent to treat it as though it is a claim against a private citizen. (See DeVore v. Department of California Highway Patrol (2013) 221 Cal.App.4th 454, 462-463.) A party may struggle to demonstrate mistake, etc. where he "fails to do anything" to pursue his claim until more than six months after an incident requiring a government claim. (See Barragan v. County of Los Angeles (2010) 184 Cal.App.4th 1373, 1383-1384.) But that is not the case here. Petitioner did not do nothing; he sought counsel well within the statute of limitations for a claim against a private citizen. Declarations in support of the motion also indicate that nothing about the vehicle that struck Petitioner indicated it was affiliated with Respondent. (Labib Decl., ¶ 5.) His counsel investigated the incident with reasonable diligence, given that counsel also had no reason to believe the defendant might be a public entity

and the statute of limitations for a case against a private litigant would not imminently expire. Upon receiving the TCR indicating Respondent was involved, Petitioner's counsel submitted a government claim almost immediately, and only a few weeks after the deadline passed.

Respondent

otherwise relies on what it characterizes as undue delay between its initial rejection of Petitioner's claim and his application to submit a late claim. The Court finds Petitioner or his counsel's neglect excusable in this regard; after rejection of the initial claim, Respondent was on notice of Petitioner's cause of action. The delay of less than three months was not patently unreasonable, and it was reasonable for Petitioner's counsel to believe the need for urgency had passed. The relevance of Petitioner's purported neglect after his claim had already been rejected is unclear, and the Court errs toward hearing Petitioner's claim on its merits. (The Court notes that Respondent itself did not feel Petitioner's request for late submission was important enough to require a response; it allowed the request to expire by operation of law rather than rejecting it. (See Labib Decl., ¶ 9.))

CONCLUSION

Petitioner Travelle Malone's

Petition for Relief from Claims Requirement is GRANTED.

Petitioner to give notice.